ministers to manage conflict; the exclusion of courts from reviewing executive decisions to keep complaints against government bodies out of court; and the increased level of participation in lawmaking, which has created new tensions. In doing so, these aspects of law reform point to the ongoing close relationship between law and violence, and the way law has been used to silence potential conflict.

First, these laws evince a common pattern of providing for the formation of a committee to oversee certain administrative processes, such as the consideration of an application for an investment permit or licence to use land. These committees usually consist of members of parliament, ministers, and government officials, and therefore have no independence from government. They are given extremely broad discretion under these laws to manage conflict. On the one hand, allowing scope for discretion is a legitimate means to ensure flexibility in decision-making and is well recognized in the common law. On the other hand, excessive discretion must not be granted to allow any kind of decision to be made. In part, this means that because most of the laws have been drafted in such broad terms, the laws have little effect until they are fleshed out in more detail by government regulations, and even then implementation depends on the capacity of ministerial departments.

Another clear pattern in the form of legislative drafting is the tendency to include finality clauses in legislation. Finality clauses (also known as ouster clauses) typically provide that a committee, which has powers of review over a certain application process, has the authority to make final decisions that cannot be reviewed by a court. Many decisions are said to be final and conclusive, including the decisions of the Myanmar Investment Commission;[30] the Region/State Farmland Management Body regarding the use of farmland;[31] the Union Election Commission regarding electoral disputes;[32] a decision of the Minister of Health in relation to licences as a dentist;[33] the Rural Development and Poverty Reduction Working Committee and its decisions on microfinance, among other examples.[34] Such provisions are an attempt to remove the jurisdiction of the court to hear these cases. In this way, it can be said that legislative reform has not empowered the courts, but rather has limited the potential role of the courts because few executive decisions are able to be challenged. Taking this one step further, it can be seen as part of the deliberate ideological project for executive control that is central to the very idea of law and legal institutions in Myanmar. This project has deep historical roots, as has been